



POLICE DEPARTMENT

September 8, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202202061 (Incident Date: March 17, 2022) regarding Sergeant David Yan, Tax No. 946402 (DADS No. 2023-28441)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202202061, pertaining to Sergeant David Yan. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Yan would be detrimental to the Police Department's disciplinary process.

The Police Commissioner noted that, in this matter, the available video evidence supports the conclusion that Sergeant Yan's use of force was reasonable, given the circumstances. Sergeant Yan and his fellow police officers responded to a radio run of a suicidal emotionally disturbed person, where an individual's mother called 911 and stated her son had just advised her he ingested enough pain medication to kill himself. Emergency Medical Technicians on scene determined the individual needed to be removed to the hospital. Sergeant Yan made the decision to handcuff the aided for the safety of himself, other officers, and the EMTs on scene, after the individual exhibited signs that he was unwilling to go to the hospital.

When Sergeant Yan attempted to place the individual in handcuffs, he was actively resisting by continuously bracing and tensing his arms, which made it highly difficult for the officers to bring his arms behind his back. In addition, the individual was reaching toward the left side of Sergeant Yan's gun belt as he was attempting to place him in handcuffs. Sergeant Yan used one hand strike to help gain control of the individual and place him in handcuffs. The limited use of force was reasonable as the hand strike was used to prevent the aided from grabbing Sergeant Yan's gun belt,

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as well as to defend himself and gain compliance, from an uncooperative individual.

In addition, the Police Commissioner noted that, in this case, the underlying incident was already investigated by Patrol Borough Manhattan South Investigations Unit, and the allegation of misconduct with regard to Sergeant Yan's actions was exonerated. Nothing that was uncovered by CCRB and provided to the Department warrants a departure from the findings of Patrol Borough Manhattan South Investigations.

Furthermore, the Police Commissioner reviewed Sergeant Yan's disciplinary history which revealed no prior substantiated CCRB allegations, and no prior formal discipline over the course of his fifteen (15) year career.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Sergeant Yan.

Sincerely,

A handwritten signature in black ink, appearing to read "D.C." followed by a stylized flourish.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

September 14, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. SGT David Yan, Tax No.: 946402
CCRB Case No.: 202202061
DADS NO.: 2023-28441
Incident date: Thursday, March 17, 2022

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony A. Marino, dated September 8, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charge and Specification in the above-cited case. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On June 7, 2023, after an in-dept and comprehensive investigation, the CCRB filed the following charge and specification against Sergeant David Yan:

“Sergeant David Yan, on about March 17, 2022, at approximately 0946, while assigned to 013 PCT and on duty in the vicinity of § 87(2)(b) New York County, wrongfully used force in that SGT Yan punched § 87(2)(b) in the face, without police necessity.

PG 221-02, PAGE 2, PROHIBITION 11 USE OF FORCE; PG 221-02, PAGE 2, PROHIBITION 12 USE OF FORCE.”

NYPD Patrol Guide Section 221-02, Page 2, Prohibition 11 mandates that members of service “apply no more than the reasonable force necessary to gain control. In addition, NYPD Patrol Guide Section 221-02, Prohibition 12 further mandates that members of service “assess the situation continually and adjust the use of force as necessity.”

It is undisputed that SGT Yan along with approximately five other officers and at least three EMTs responded to a 911 call informing that the victim, § 87(2)(b) was attempting suicide by ingesting pills. The 911 communications event records and other evidence established that § 87(2)(b) in the presence of § 87(2)(b) and assisting her, reported that § 87(2)(b) took a lot of pain medication and tried to kill himself. The radio communications recorded the central dispatcher relaying this information to the officers and noted that § 87(2)(b) did not have a violent history.

The members of service and the EMTs somehow gain access to § 87(2)(b) apartment. The BWC recordings never showed how the officers and EMTs entered the apartment but the recording showed that § 87(2)(b) was undress with his lower body being covered as he is lying in his bed calmly communicating with the EMT members.

The EMT members and § 87(2)(b) communicated for approximately sixteen minutes regarding § 87(2)(b) mental and physical health issues. Also, they discussed whether he needed to go to the hospital to be examined based on the allegations that were communicated to the 911 operator and the concern for his health. After about thirteen minutes of going back and forward regarding if § 87(2)(b) was going to the hospital, the EMT members determined and informed § 87(2)(b) that he will be taken to the hospital. The sequence of events are clearly evident in PO Wallace's and Cadoo's BWC recordings as described below:

PO Wallace's BWC recording at the beginning showed § 87(2)(b) lying on his bed with the covers over him. When the audio begins, § 87(2)(b) explains that his mother was mentally unstable and lied about him being suicidal. The EMTs checked § 87(2)(b) vitals. SGT Yan is in the bedroom, standing near PO Wallace. At 9:26 minutes, one of the female EMTs tells § 87(2)(b) that they must take him to the hospital. § 87(2)(b) then speaks with the EMTs about what will happen when he goes to the hospital. Initially he agrees to go, but at 10:47 minutes, § 87(2)(b) says that he does not want to go anywhere. A female EMT explains that he is going. At 12:35 minutes, SGT Yan pulls the covers off § 87(2)(b) as they try to get him ready to leave for the hospital and § 87(2)(b) asks him to stop. At 12:50 minutes, § 87(2)(b) sits himself up and stands up. § 87(2)(b) begins getting dressed. At 14:59 minutes, § 87(2)(b) says that he is looking for a loose long green pill. At 15:30 minutes, a female EMT says that she found the pill, but that § 87(2)(b) could not take it because it is a loose pill. § 87(2)(b) says that it is his Xanax and that he is having an anxiety attack and needs it because he was having a panic attack. The EMT says that he cannot take it and at 16:00 minutes, § 87(2)(b) opens a drawer and asks the EMT to leave the pill in the drawer. At 16:02 minutes, SGT Yan says that they are going to handcuff § 87(2)(b). SGT Yan walks on top of § 87(2)(b) mattress and approaches § 87(2)(b). § 87(2)(b) repeatedly asks the officers why they are cuffing him and he repeatedly stated that "I don't need to be cuffed." At 16:26 minutes, he asks the officers to please stop and repeatedly stated "I will comply." SGT Yan and PO Wallace are pulling on § 87(2)(b) arms and trying to get them behind his back. At 16:39 minutes, PO Wallace is attempting to get § 87(2)(b) right arm, but § 87(2)(b) kept it bent to the side of his body. At 16:30 minutes, the angle shows that PO Cadoo is reaching for § 87(2)(b) right arm. At 16:48 minutes, § 87(2)(b) falls to his bed as the SGT Yan and the other Officers were attempting to handcuff him. § 87(2)(b) tells the officers to stop and that he will comply. The officers tell him to stop

resisting and he responded that he is not resisting. § 87(2)(b) is now on his back and rolling over on his bed.

Patrol Guide 221-01, Page 1, Paragraph 2 – mandates in relevant part that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from subject to reduce or eliminate the necessity of to use force. In the instant matter, EMTs were working with § 87(2)(b) and he was complying even though at times not immediately to every requests. At no time during the approximately sixteen minutes prior to SGT Yan's decision to escalate their interaction with § 87(2)(b) were any evidence that § 87(2)(b) was violent. He only dress in his underwear and in his bed for the first fifteen minutes. Beside tensing his arm and requesting that the officer do not cuff him did he take any other physical action. The EMTs communicated with § 87(2)(b) while the officers were positioned around his bed and the evidence showed they were no concerns for safety. In fact, the 911 dispatcher notified the responding Officers that § 87(2)(b) does not have a violent history, which was evident in the BWCs recordings.

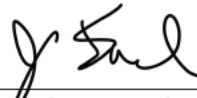
In addition, the Scope portion of PG 221-13 states that “[t]he primary duty of all members of the service is to preserve human life. The safety of all persons involved is paramount in cases involving emotionally disburbed persons. If such persons is dangerous to himself or others, force may be used when it is reasonable to prevent serious physical injury or death. Members of the service will use only the reasonable force necessary to gain control or custody of a subject. When there is time to negotiate, all the time necessary to ensure the safety of all individuals will be used.” The EMTs workers examined, communicated, and negotiated with § 87(2)(b) for approximately thirteen minutes. SGT Yan never participated in their inaction except to pull on the § 87(2)(b) covers when he was instructed to get dress. According to the BWC recordings it took twenty-six minutes and twenty-eight seconds the EMTs and the officer entry into § 87(2)(b) apartment to his removal to the hospital. Even as SGT Yan decided to handcuff § 87(2)(b) who was getting dressed to comply, § 87(2)(b) was not harming/threatening to arm himself or others, he was in his bedroom with three visible officers and three EMTs. § 87(2)(b) did not exhibit any violence except requesting not to be cuffed and promising to comply SGT Yan never attempted to de-escalate the situation as required by PG 221-01, PG 221-02, and PG 221-13. In fact, he escalated the situation by walking across § 87(2)(b) bed, attempting to handcuff § 87(2)(b) as § 87(2)(b) complied with the EMT members' instruction to get dress.

When SGT Yan walked across § 87(2)(b) bed, he and the officers attempted to put § 87(2)(b) in handcuffs, § 87(2)(b) attempted to negotiate by standing firm requesting not to be cuffed and promising compliance, the officers were allowed to use reasonable force to get him in handcuffs to safely remove § 87(2)(b) to the hospital. When § 87(2)(b) fell onto his bed, with SGT Yan above him and the other officers around him, PO Cadoo's recording shows that § 87(2)(b) arm goes within the vicinity of SGT Yan's belt, but for less than a second. By the time that SGT Yan raises his fist to strike § 87(2)(b) hand is no longer near his belt and was never near his weapon. SGT Yan's punch caused physical injury to § 87(2)(b) required stitches, and lasting injury to SGT Yan's wrist. Given the briefness of § 87(2)(b) arm at SGT Yan's belt, the presence of numerous other officers, and the nature of the force used, the BWC evidence showed that SGT Yan punching § 87(2)(b) in the face was unreasonable and

caused physical injury to § 87(2)(b) face. The evidence established that SGT Yan used excessive force when he punched § 87(2)(b) in his face. In fact, it is clear from the video that the so-called emotionally disturbed person actually put more effort into de-escalating the interaction than SGT Yan.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of the service, based upon foregoing, the preponderance of evidence in the case, and in the interest of justice it is respectfully requested that you permit CCRB to pursue the charge and specification against Sergeant David Yan in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 15, 2023

Re: CCRB Case No. 202202061 (Incident Date: March 17, 2022) regarding Sergeant David Yan, Tax No. 946402 (DADS No. 2023-28441)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 14, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant David Yan, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Yan, for the reasons expressed in my September 8, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Sergeant David Yan receive no disciplinary action in connection with this matter.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office